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CASE #	CASE NAME	HEARING NAME
CVRI2306248	IGARASHI vs RIVERSIDE UNIFIED SCHOOL DISTRICT	MOTION FOR SUMMARY JUDGMENT ON 2ND AMENDED COMPLAINT

Tentative Ruling: Defendant Riverside Unified School District's Motion for Summary Judgment/Adjudication is denied.

REQUEST FOR JUDICIAL NOTICE:

Plaintiff requests judicial notice of the SAC. The request is granted pursuant to Evid. Code § 452(d).

Any party may move for summary judgment in any action or proceeding if it is contended that the action has no merit or that there is no defense to the action or proceeding. (CCP § 437c(a).) "A defendant's motion for summary judgment should be granted if no triable issue exists as to any material fact and the defendant is entitled to a judgment as a matter of law." (*Kahn v. East Side Union High School Dist.* (2003) 31 Cal. 4th 990, 1002-1003.) "The moving party bears the burden of production to make a prima facie showing of the nonexistence of any triable issue of material fact." (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal. 4th 826, 850.) Once the moving party's burden has been met, the burden shifts to the opposing party to make a prima facie showing of the existence of a triable issue of material fact. (*Aguilar, supra*, 25 Cal. 4th at 850.) The moving party's evidence must be strictly construed, while the opposing party's evidence must be liberally construed. (*Binder v. Aetna Life Ins. Co.* (1999) 75 Cal.App.4th 832, 838.) "Any doubts as to the propriety of granting the motion are resolved in favor of the party opposing the motion." (*American Airline v. Sheppard, Mullin, Richter & Hampton* (2002) 96 Cal. App. 4th 1017, 1048.)

Pursuant to CCP §437c(f)(1), a party may move for summary adjudication as to one or more causes of action within an action, one or more affirmative defenses, claims for damages or issues of duty. "Summary adjudication motions are procedurally identical to summary judgment motions." (*Serri v. Santa Clara University* (2014) 226 Cal. App. 4th 830, 859.) A motion for summary adjudication shall be granted only if it completely disposes of a cause of action, affirmative defense, claim for damages or issue of duty, which has no merit. (*Smith v. Wells Fargo Bank, N.A.* (2005) 135 Cal. App. 4th 1463, 1472.)

NEGLIGENCE:

The elements of a cause of action for negligence are: (1) a legal duty to use due care; (2) breach of such duty; (3) the breach was the proximate or legal cause of resulting injuries. (*Ladd v. County of San Mateo* (1996) 12 Cal. 4th 913, 917.) Under the California Claims Act, Gov. Code § 810 *et seq.*, "a public entity is not liable for injury arising from an act or omission except as provided by statute." (*See Creason v. Department of Health Services* (1998) 18 Cal.4th 623, 630-31.) Here, the Negligence cause of action is based on Gov. Code §§ 815.2 and 820. Section 815.2 provides that a

public entity may be vicariously liable for injury proximately caused by its employee's act or omission within the scope of employment if the act or omission would otherwise have given rise to a cause of action against the employee. Gov. Code § 820 provides: "Except as otherwise provided by statute (including Section 820.2), a public employee is liable for injury caused by his act or omission to the same extent as a private person." (Gov. Code § 820(a).)

The District argues that the first cause of action fails because Plaintiff cannot establish a duty. The threshold element of a cause of action for negligence is the existence of a duty to use due care toward an interest of another that enjoys legal protection against unintentional invasion." (*Bily v. Arthur Young & Co.* (1992) 3 Cal.4th 370, 397.) The existence of a duty of care, required for any negligence claim, is a question of law, decided on a case-by-case basis. (*M.W. v. Panama Buena Vista Union School District* (2003) 110 Cal.App.4th 508, 516.)

California law imposes an affirmative duty to supervise the conduct of children on school grounds. (*Dailey v. Los Angeles Unified School Dist.* (1970) 2 Cal.3d 741, 747.) "While school districts and their employees have never been considered insurers of the physical safety of students, California law has long imposed on school authorities a duty to 'supervise at all times the conduct of the children on the school grounds and to enforce those rules and regulations necessary to their protection.'" (*C.A. v. William S. Hart Union High School Dist.* (2012) 53 Cal. 4th 861, 869.) "The existence of a duty of care of a school district toward a student depends, in part, on whether the particular harm to the student is reasonably foreseeable." (*M.W.*, *supra*, 110 Cal. App. 4th at 518-519.) "Foreseeability is determined in light of all the circumstances and does not require prior identical events or injuries." (*Id.* at 519.) Thus, a school district is negligent "if a reasonably prudent person would foresee that injuries of the same general type would be likely to happen in the absence of [adequate] safeguards." (*Id.*; citing *Taylor v. Oakland Scavenger Co.* (1941) 17 Cal. 2d 594, 600.)

Plaintiff alleges that on or about January 20, 2023, he was assaulted for the second time by a student who previously threw a basketball at his face on December 16, 2022, when the student intentionally collided with Plaintiff while lining up after recess due to the District's policy of requiring students to rush to get into line. (SAC, ¶ 8.) It is undisputed that on January 20, 2023, when Plaintiff jogged or rushed to line up after recess, he collided with Student Z, who fell on Plaintiff's leg. (UMF Nos. 32, 33.) Plaintiff was instructed by the recess monitor to go to the main office, where he was then instructed to go to the health office. (UMF Nos. 38, 40.) While in the health office, Plaintiff told Ms. Varela, Woodcrest's Health Assistant that his leg hurt after Student Z landed on his ankle, and that something was wrong with his foot. (UMF Nos. 5, 42.) Ms. Varela provided Plaintiff with an ice pack and instructed him to leave the ice pack on his ankle and rest for ten minutes and then return to class. (Decl. of Varela, ¶ 6.)

Plaintiff argues that the District owed a duty to properly care for Plaintiff after he was injured pursuant to the District's written health policies, which was breached by Varela's failure to take required actions. The District's Health Services On-Call Nurse (RN) policy requires the Health Assistant to always call the "On-Call Nurse" and submit an Accident Report for injuries that appear to be of a serious nature, including possible fractures and

possible sprains or strains. (Decl. of Briggs, Ex. D.) The Emergency First Aid Guidelines for California Schools require that all injured parts as if they could be fractured and recheck the injury after a period of rest to determine whether the pain is gone and the person can put weight on the injured part without discomfort. (Id, Ex. F.) If the pain is not gone and the person cannot put weight on the injured part, the school nurse or administrator and parents or guardians should be contacted. (Id.) Plaintiff states that he experienced severe pain after the collision, both before and after visiting the Health Office. (Decl. of Clark, ¶¶ 7, 29.) He claims that he could not walk to the Health Office without assistance from a friend. (Id at ¶ 8.) Plaintiff contends that Ms. Varela told him to return to class without asking whether the ice made the pain go away or ensuring that he could walk normally. (Id at ¶¶ 15-20.) To get to class, Plaintiff had to limp and use the wall for support. (Id at ¶ 28.) There is no evidence that Varela rechecked the injury as required or contacted Plaintiff's parents or the on-call nurse.

The District does not dispute these guidelines or that Plaintiff's injury was not rechecked or that his parents were not called. Instead, the District argues that it is not liable because Ms. Varela's failure to recheck the injury or contact Plaintiff's parents or the on-call nurse involve discretionary acts for which she is immune. Gov. Code § 820.2 grants immunity to public employees for injuries resulting from certain discretionary decisions by providing: "Except as otherwise provided by statute, a public employee is not liable for an injury resulting from his act or omission where the act or omission was the result of the exercise of the discretion vested in him, whether or not such discretion be abused." But "virtually every public act admits of some element of discretion." (*Tarasoff v. Regents of Univ. of Cal.* (1976) 17 Cal.3d 425, 445 [citing *Johnson v. State of Cal.* (1968) 69 Cal.2d 782].)

As a result, the court "distinguished between basic policymaking or 'planning' on the one hand and ministerial or 'operational' levels of decision-making on the other hand, holding that the first category triggered immunity while the latter category did not." (*Perez-Torres v. State of Cal.* (2007) 42 Cal.4th 136, 142–143.) "[T]o be entitled to immunity[,] the [defendant] must make a showing that such a policy decision, consciously balancing risks and advantages, took place. (*Lopez v. Southern Cal. Rapid Transit Dist.* (1985) 40 Cal.3d 780, 793.) For example, in *Lopez*, the court explained that a bus driver's decision concerning the protection of passengers from a third-party did not "rise to the level of governmental decisions calling for judicial restraint. (Id at 784, citing *Johnson, supra*, 69 Cal. 2d at 797.) Such a decision was determined to be a ministerial or operational action taken to implement the basic policies of the Legislature that is not immunized under section 820.2, despite the fact that the driver had alternative courses of action from which to choose and the choice involved some degree of judgment. (*Lopez, supra*, 40 Cal. 3d at 794.)

In this case, it is undisputed that after providing the ice pack and short rest, Ms. Varela determined that no further action was necessary based on Plaintiff's description of the injury and her own observations. (Decl. of Varela, ¶ 7.) The decision to return Plaintiff to class without contacting his parents or the on-call nurse was an operational rather than policy making decision. As such, the District has not established that it is entitled to immunity under Gov. Code § 820.2. Accordingly, Plaintiff has established that there are triable issues as to the existence of duty of care and the breach of that duty.

The District argues that, even if there are triable issues as to duty and breach, Plaintiff cannot establish causation because the ankle fracture was the result of Plaintiff running to the recess line and Student Z falling on his leg. “In order for a plaintiff to satisfy the causation element of a negligence cause of action, he or she must show the defendant’s act or omission was a substantial factor in bringing about the plaintiff’s harm...In other words, [the] plaintiff must show some substantial link or nexus between omission and injury.” (*Leyva v. Garcia* (2018) 20 Cal. App. 5th 1095, 1104.)

It appears to be undisputed that video of the incident shows that Plaintiff jogged or rushed to the recess line. (UMF No. 32; NOL, Ex. 5.) Per the student handbook provided to Plaintiff’s family prior to the 2022-2023 school year, Woodcrest had a policy requiring students to walk when lining up after recess. (Decl. of Fladland, ¶ 4.) Plaintiff and Student Z collided, causing Student Z to fall on Plaintiff’s leg. (UMF No. 33.) The District argues that Plaintiff cannot show that additional recess monitors or supervisors would have prevented the collision. A plaintiff cannot prove that the lack of supervision was substantial factor in causing injuries where there is only speculative possibility that additional supervision might have prevented the harm. (*Rinehart v. Boys & Girls Club of Chula Vista* (2005) 133 Cal. App. 4th 419, 435.)

However, Plaintiff claims that he suffered additional physical pain and suffering and emotional distress as a result of Varela’s failure to take proper actions after the collision. (SAC, ¶ 25.) The extent of recess supervision is irrelevant to this issue. In response, Defendant argues that the assertion that the failure to contact Plaintiff’s parents increased his injuries is belied by the undisputed fact that his parents did not seek medical treatment until the following day. (UMF No. 54.) In the meantime, Plaintiff’s parents instructed him to lie down, elevate his leg and apply an ice pack followed by warm-water treatment. (UMF No. 52.) This does not establish that the failure to recheck the injury or contact the on-call nurse did not cause additional injuries following the collision. Accordingly, there are triable issues of facts as to duty, breach and causation.

SUMMARY ADJUDICATION:

The District also seeks summary adjudication of the “Name-Calling Incident”, which Defendant argues was not addressed in the Government Claims Act claim. “Pursuant to Cal. Code Civ. Pro. §437c(f)(1), summary adjudication must dispose of one or more causes of action, affirmative defenses, claims for damages or issues of duty. Under the statute, adjudication of facts or issues that do not completely dispose of a cause of action, defense, claim for damages or issue of duty is improper. (*Lilienthal & Fowler v. Superior Court* (1993) 12 Cal. App. 4th 1848, 1853.)

Gov. Code § 945.4 provides that a lawsuit for money damages cannot be maintained against a public entity until a claim has been presented to the public entity and acted upon by the board or rejected. “Compliance with the claims statute is mandatory, and the failure to file a claim is fatal to the cause of action.” (*City of San Jose v. Superior Court* (1974) 12 Cal.3d 447, 454.) “The primary function of the Government Tort Claims Act (§ 810 et seq.) is to apprise the governmental body of imminent legal action so that it may investigate and evaluate the claim and where appropriate, avoid litigation by

settling meritorious claims.” (*Turner v. Cal.* (1991) 232 Cal. App. 3d 883, 888.) Courts generally apply a test of substantial compliance to determine whether there is sufficient information disclosed on the face of the tort claim to reasonably enable the public entity to make an adequate investigation of the merits of the claim and to settle it without the expense of a lawsuit. (*City of San Jose v. Superior Court* (1974) 12 Cal. 3d 447, 456.) “Consequently, a claim need not contain the detail and specificity required of a pleading, but need only fairly describe what the entity is alleged to have done.” (*Stockett v. Association of Cal. Water Agencies Joint Powers Ins. Authority* (2004) 34 Cal. 4th 441, 446.) The claim need not state each particular act which is later proven to have caused the injury. (Id at 447.)

On May 16, 2023, Plaintiff submitted a claim to the District pursuant to the Claims Act. The Claim refers to the December 16, 2022 Basketball Incident and the January 20, 2023 Collision Incident. (Decl. of Briggs, Ex. G.) It does not reference any name calling. Neither does the Second Amended Complaint, which only refers to “ongoing bullying”. (SAC, ¶ 23.) The description of the two incidents is sufficient to apprise the District that Plaintiff’s claims against it involve bullying by another student. Therefore, the Claim substantially complies with the Claims Act requirements. In its Memorandum of Points and Authorities, the District refers to testimony regarding name calling occurring for a couple of days before the Basketball Incident. However, since these allegations do not appear in the SAC, adjudication of the issue would not completely dispose of the negligence cause of action.

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CASE #	CASE NAME	HEARING NAME
CVRI2502515	SOLIS vs KENNON	MOTION TO STRIKE ANSWER ON COMPLAINT

Tentative Ruling: Plaintiff’s UNOPPOSED Motion to Strike Defendants HAYLEY A. KENNON, PENELOPE A. DELEON, and LUIS ENRIQUE DELEON’s Answer is granted, with leave to amend within 30 days.

Where verification of a pleading is required, and it is either not verified or improperly verified, it is subject to a motion to strike. *Perlman v. Municipal Court*, 99 Cal. App. 3d 568, 160 Cal. Rptr. 567 (2d Dist. 1979). Verification is not a jurisdictional requirement. *People v. Birch Securities Co.*, 86 Cal. App. 2d 703, 196 P.2d 143 (3d Dist. 1948)] Therefore, practitioners must object to a lack of verification or a defective verification or risk waiving the defect as they proceed to trial. *Ware v. Stafford*, 206 Cal. App. 2d 232, 24 Cal. Rptr. 153 (2d Dist. 1962)] The failure to verify a pleading, even where the verification is required by statute, is looked on as a mere defect curable by amendment. *United Farm Workers of America v. Agricultural Labor Relations Bd.*, 37 Cal. 3d 912, 210 Cal. Rptr. 453, 694 P.2d 138, 117 Lab. Cas. (CCH) P 56496 (1985).